

Court No. - 40

Case :- WRIT - C No. - 11590 of 2023

Petitioner :- Mukhtar Ahmad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jitendra Singh

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

It is informed that Shri Baleshwar Chaturvedi, Advocate is authorised to receive notice on behalf of third respondent.

List revised. None appears on behalf of petitioner to press the writ petition.

Put up as fresh on 12.04.2023 showing the name of Shri Baleshwar Chaturvedi, Advocate from the side of respondents.

Order Date :- 10.4.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 11590 of 2023

Petitioner :- Mukhtar Ahmad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jitendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

Learned counsel for the petitioner submits that he may be permitted to incorporate necessary correction in the array of respondents.

Let necessary correction be incorporated in the array of Respondents forthwith.

Sri Pranjal Mehrotra, Advocate has apprised this Court that he has received notice on behalf of Respondent No. 3, Pashchimanchal Vidyut Vitran Nigam Ltd, Moradabad Region, Moradabad.

Let copy of the petition be served upon Sri Pranjal Mehrotra, learned counsel for the Respondent No. 3 to enable him to seek instructions in the matter.

Put up this case as fresh on 27.04.2023 showing the name of Sri Pranjal Mehrotra in appropriate column of counsel.

Order Date :- 20.4.2023

A. Mandhani

Court No. - 40

Case :- WRIT - C No. - 11590 of 2023

Petitioner :- Mukhtar Ahmad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jitendra Singh

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

Heard learned counsel for the petitioner, Ms. Uttara Bahuguna learned Addl. Chief Standing Counsel for the State respondent no.1 and Sri Pranjal Mehrotra, learned counsel appearing for respondent nos.2 and 3.

Present writ petition is preferred for a direction to the Executive Engineer, EUDD-11, Moradabad (respondent no. 2) to issue a new electricity connection in favour of the petitioner.

It appears from the record that the petitioner is living in a rented house of one Sartaj Ahmad (respondent no.4) situated at Mohalla Pakki Sarai, Police Station Gal Saheed, District Moradabad. It is claimed that the respondent no.4 had agreed to sell the two-third portion of the said house vide agreement dated 01.02.2021 and taken Rs.4,50,000/- from the petitioner. Once he had refused to execute the sale deed of the aforesaid house on the basis of the agreement dated 01.02.2021 then the petitioner had made a complaint before the concerned Police Station against the respondent no.4. Being annoyed with the said complaint, the wife of respondent no.4 namely Ahsana has lodged the first information report dated 30.06.2021 against the son of the petitioner namely Jeesan under Sections 376 and 504 I.P.C. In the said case, the entire family of the petitioner has been falsely implicated with a view to compel the petitioner to vacate the house in question. During the investigation, it was found that the entire allegation levelled against the petitioner is incorrect and consequently, the final report has already been submitted by the investigating officer. When the respondent no.4 has not returned the advance money to the petitioner, the petitioner has instituted Original Suit No. 1011 of 2021 before the Civil Judge (Jr. Div.) Moradabad for grant of injunction against the respondent no. 4, wherein a report was submitted by the Amin showing that the petitioner is living in 2/3 lower portion of the said house. Thereafter, the respondent no.4 has disconnected the electricity supply of the petitioner's portion. The petitioner has continuously paid the rent from time to time and requested the respondent no.4 for connecting the electricity supply but

he has refused to connect the electricity. The petitioner has made an application before the electricity department for new electricity connection in the prescribed proforma and deposited the new electricity connection charge of Rs.2000/-. By the order dated 11.09.2021 the respondent no. 2 has rejected the application of the petitioner for new electricity connection.

Learned counsel for the petitioner in this backdrop submits that the petitioner is a tenant of the aforesaid house. There is a dispute going on with the landlord and on account of ongoing dispute and in order to create pressure upon the petitioner-tenant to vacate the house, the respondent no.4 got the supply of electric supply disconnected. Thereafter, the petitioner moved the application on the prescribed form for grant of new electricity connection but the has been rejected by the respondent no.2 on 11.9.2021 on the ground that since the the landlord has refused to give no objection to the electricity connection, as such, the new connection cannot be provided. It is submitted that the supply of electricity is essential for life. In support of his submission, learned counsel for the petitioner has placed reliance upon the Division Bench judgment of this Court passed in Writ Petition No. 28295 of 2014 (**Seema Mansoor Vs. U.P. Power Ltd. & 3 others**) decided on 26.05.2014, wherein it was found that the Division Bench judgment in the case of Ravi Shankar Giri vs. Sub Divisional Officer, U.P. Power Corporation Limited and others reported in 2007 (4) AWC 3934, and as such, the direction may be issued to the respondents to accord the electricity connection in favour of the petitioner.

Sri Pranjal Mehrotra, learned counsel for the electricity department submits that in case the petitioner moves an appropriate application for electricity connection as per the Electricity Supply Code, 2005, in accordance with law and the procedures prescribed by giving indemnity bond and also fulfilling all other requirements, the respondent authority shall consider the claim of the petitioner strictly in accordance with law.

Considering the facts and circumstances of the case, no useful purpose would be served in keeping the matter pending considerations, we dispose of the writ petition with a direction that in case petitioner moves an appropriate application, strictly in accordance with law, within two weeks from today, the department would consider the application of the petitioner, in accordance with law, within further three weeks.

Order Date :- 27.4.2023
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